

ICE by the Numbers

*An Empirical Assessment of
Immigration Enforcement Under the
Second Trump Administration*

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Executive Summary

Since January 2025, immigration enforcement has become one of the most visible and contested areas of federal policy, but public debate over it has been conducted almost entirely in adjectives—“criminal,” “invasion,” “worst of the worst”—rather than in the enforcement data the government itself is required to publish. This report draws on U.S. Immigration and Customs Enforcement’s (ICE) statutorily mandated detention statistics workbook and individual-level records obtained through the Freedom of Information Act (FOIA) to assess enforcement activity, the composition of the detained population, and the operational costs of the current buildup through mid-2026.

Three findings stand out:

- **Enforcement has scaled sharply but remains well short of stated targets.** ICE’s FY2026 budget request sought funding for 1,000,000 removals per year; through nine months of FY2026, the agency’s own data show a pace less than half that rate.
- **The population in detention is increasingly composed of people without any conviction.** ICE’s public “60 percent have a criminal record” figure combines convicted individuals with those facing untested accusations. Individual-level FOIA data show that roughly two-thirds of everyone booked into detention under this administration has no conviction of any kind, and that share has risen since January 2025.
- **Reported figures likely understate the program’s full footprint.** ICE’s own reporting has recorded ten U.S. citizens arrested since the start of the administration; independent reporting has identified more than 170. In-custody deaths are similarly undercounted in ICE’s headline statistics relative to independent tallies.

Introduction

Under a 2020 congressional appropriations requirement, ICE publishes and periodically updates a detention statistics workbook covering every facility holding at least one detainee: length of stay, inspection status, and the number of beds guaranteed under contract regardless of occupancy. Separately, the agency reports removals, book-ins, and other enforcement metrics on a rolling basis. This report analyzes both the ICE-published workbook and a second, more granular dataset (individual-level arrest and detention records obtained via FOIA by the Deportation Data Project at UC Berkeley and UCLA) to build a data-driven picture of enforcement activity under the second Trump administration.

Data and Methods

Two primary sources underlie this analysis:

1. ICE’s [detention statistics workbooks](#) (FY2025 and FY2026), most recently published July 20, 2026 and accessed September 1, 2026.

2. **The [Deportation Data Project's FOIA release](#)**, covering individual arrests and detention stays from January 21, 2025 (the first full day of the administration) through August 6, 2026, the [most recent data available](#). The Project publishes an accompanying [codebook](#) and a public [Data Explorer](#) (currently in beta) allows independent replication of simple queries.

Because ICE's own reporting periods are inconsistent, three conventions are applied throughout:

- **Month-by-month series** run from February 2025 (the administration's first full month) through June 2026 (the most recent full month reported).
- **Fiscal-year figures** are drawn only from FY2026, since FY2025 (beginning October 2024) overlaps with the Biden administration.
- **Snapshot figures** are drawn from early July 2026 and labeled as such.

Supplementary figures on removal costs and detention funding are drawn from the State Department, the Penn Wharton Budget Model, and ProPublica reporting, and are cited where used.

The Scale, Pace, and Cost of Enforcement

Detention Population

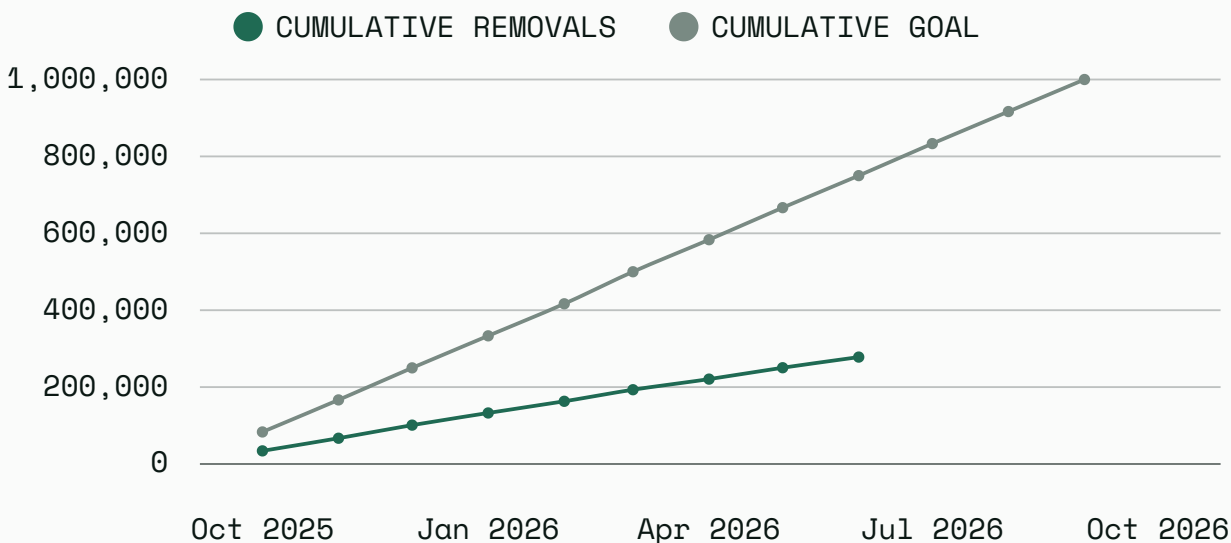
As of early July 2026, 66,096 people were being held in ICE detention. The FY2026 average daily population of 64,508 is the highest sustained detention population in the agency's history. Since the start of the second Trump administration, ICE has booked 591,089 distinct people into detention and reported 483,392 removals over eighteen months. An estimated 183,181 additional people were under alternatives-to-detention monitoring (smartphone apps, ankle or wrist monitors) as of July 11, 2026, at a reported cost of roughly \$280,000 per day. Total deportation-related funding through FY2029, including mandatory appropriations and the reconciliation bill commonly known as the Big Beautiful Bill, totals approximately \$296 billion, or roughly \$2,300 per taxpayer over the FY2025-FY2029 window.

Enforcement Pace Versus Stated Targets

ICE's [FY2026 Congressional Budget Justification](#), published in June 2025, requested funding for "the Administration's strategy of 1,000,000 removals per year and 100,000 detention beds," a target that had surfaced two months earlier in [Washington Post reporting](#) attributing the figure to White House Deputy Chief of Staff Stephen Miller. Reaching one million removals in a fiscal year requires a sustained pace of roughly 83,333 per month. Nine months into FY2026, ICE's own published removal count stood at 356,389, a run rate of well under half a million annually, and less than half of the stated goal.

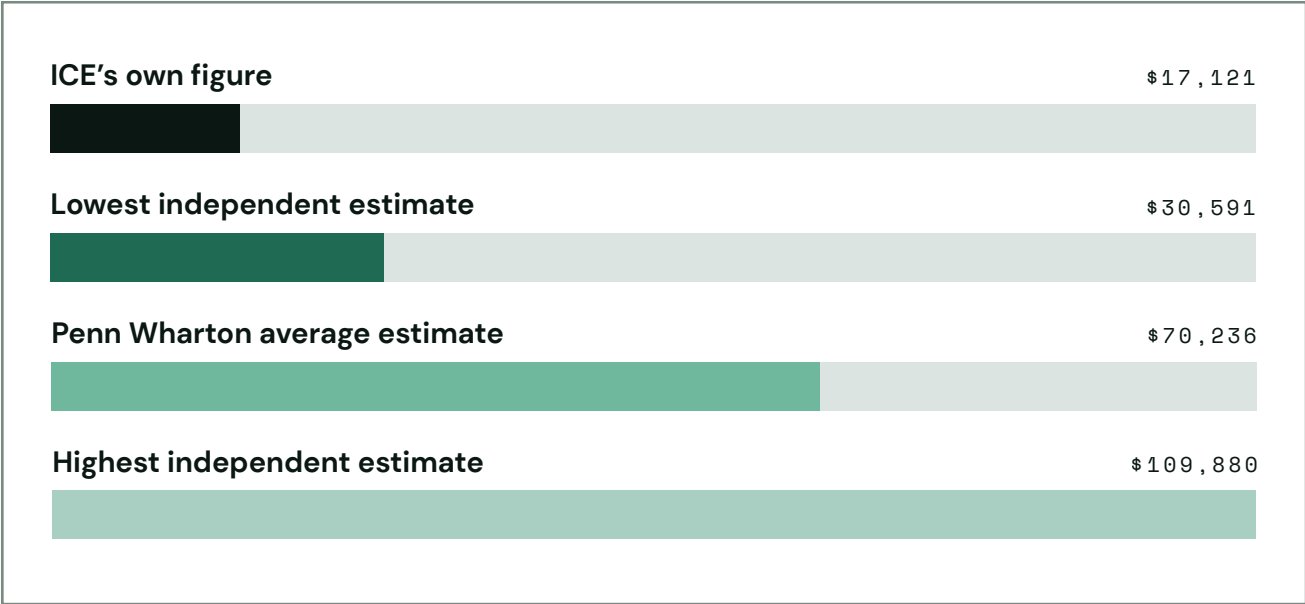
Cumulative Removals vs. Required Trajectory

To reach target of 1,000,000 removals in FY 2026



The Cost of Removals

Estimates of the average cost to arrest, detain, and remove one individual vary considerably depending on what is counted. The State Department's public figure is “[over \\$18,000](#)” (ICE's own internal figure, per the workbook, is \$17,121). Independent estimates [compiled by the Penn Wharton Budget Model](#) range from \$30,591 to \$109,880, averaging \$70,236. The gap between the government's figure and independent estimates is not a matter of rounding; it reflects a disagreement over which costs are counted—detention days, court proceedings, transportation, litigation, and the economic value of labor withdrawn from the workforce.



Who Is Being Detained

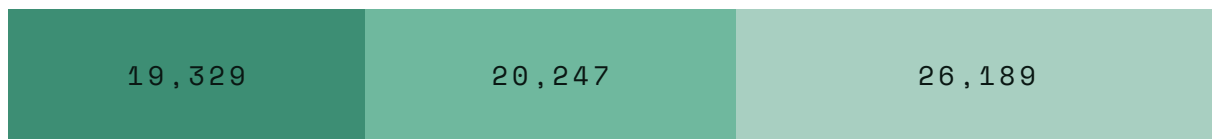
ICE's Aggregative "Criminal Record" Metric

Administration officials have repeatedly described enforcement targets as "the worst of the worst." ICE's own data offers partial support for a version of this claim: as of early July 2026, the agency reported that 60 percent of people in detention had a "criminal record." That figure, however, combines two categories that a court would treat very differently: people with actual convictions and people facing pending, untested charges. Of the same 65,675 detainees, only 19,329 (29.4 percent) had a conviction of any kind; the remaining 70.6 percent were either awaiting trial on unresolved charges or held solely for a civil immigration violation, with no criminal charge or conviction at all. ICE does not separately publish the nature of the charges or convictions underlying its aggregate figure.

The same 65,765 people, sorted two ways

COUNTED ICE'S WAY - "HAS A CRIMINAL RECORD"

60% "criminals"

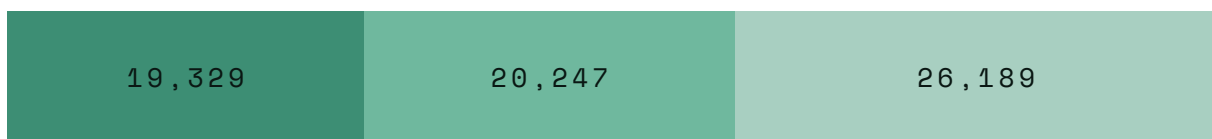


Grouped together and reported as "has a criminal record"

Other immigration violators

COUNTED AS A COURT WOULD - "CONVICTED"

70.6% "legally innocent"



Convicted

No convictions

Convicted criminal

19,329 people with a conviction of any kind, at any point, of any severity, including immigration offenses and decades-old misdemeanors.

Pending charges

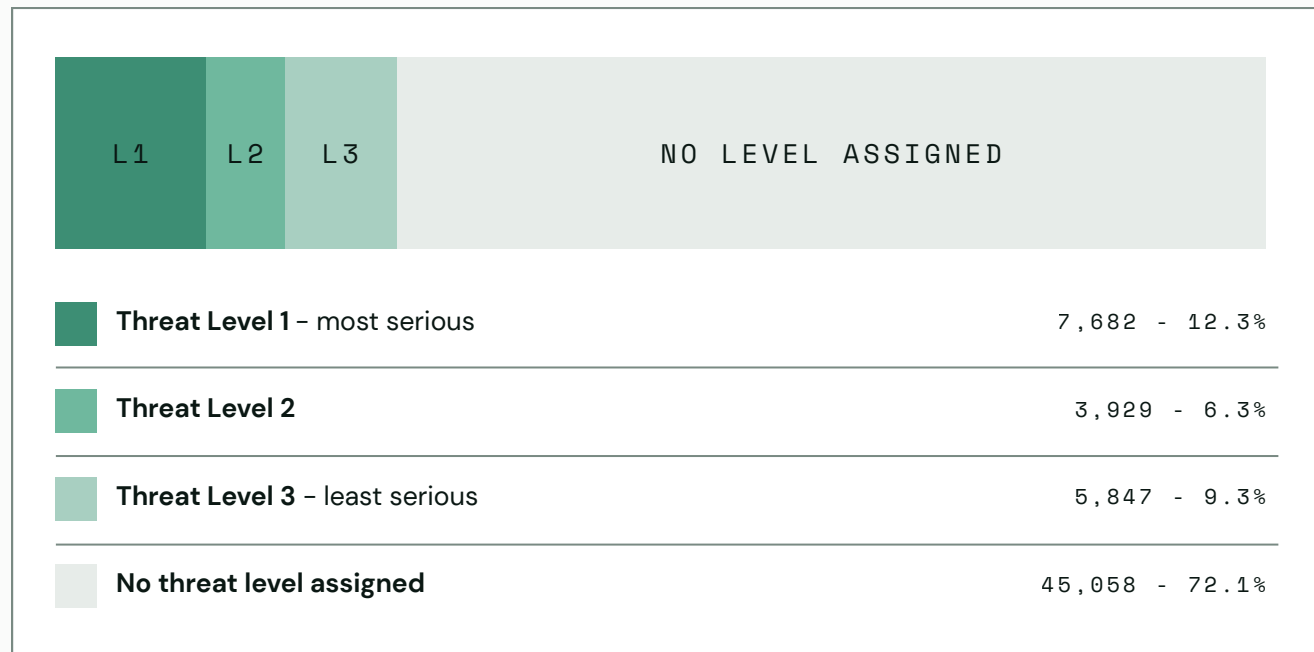
20,247 people accused, but not yet tried or convicted, of a crime of any kind.

Other violator

26,189 people with no convictions or pending charges, only a civil immigration status issue and nothing else.

ICE's Internal Threat-Level System

ICE separately assigns detainees a threat rating from 1 (most serious) to 3 (least serious) based on the severity and recency of criminal history. As of a July 9, 2026 snapshot limited to non-specialty facilities with at least one detainee, 72.1 percent of the population, or 45,058 people, had no threat level assigned at all; only 12.3 percent were rated Level 1.



What the Convictions Actually Consist Of

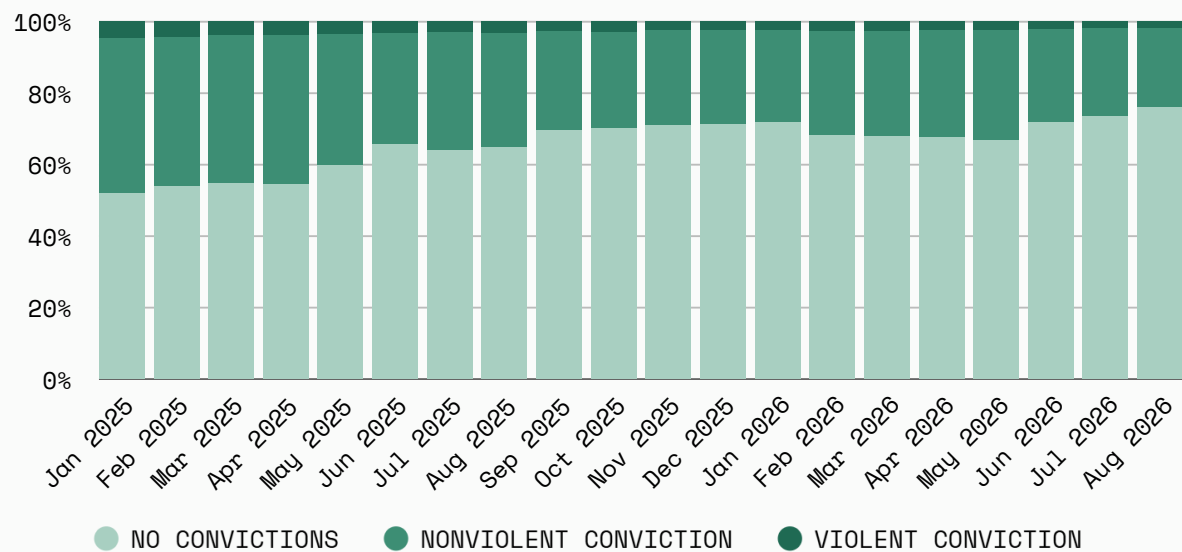
The FOIA data allows a closer look at what “criminal record” means in practice. Of 616,455 detention stays recorded between January 21, 2025 and August 6, 2026 (representing 591,089 distinct people), 67.8 percent involved no conviction at all, 29.8 percent involved a nonviolent conviction, and 2.4 percent involved a conviction classified as violent—roughly one in forty-one people booked into detention. Among those with a conviction, the ten most common offenses are led by driving under the influence, illegal entry, traffic offenses, assault, illegal re-entry, larceny, drug trafficking, dangerous-drug offenses, burglary, and domestic violence. Offenses more consistent with the “worst of the worst” framing appear much further down the list: sexual assault, aggravated assault with a weapon, and robbery together account for 1.25 percent of all ICE book-ins, and homicide and kidnapping do not appear among the twenty most common convictions at all.

MOST SERIOUS CONVICTION	STAYS	SHARE OF CONVICTED	SHARE OF ALL ICE BOOK-INS
DRIVING UNDER THE INFLUENCE	25,028	14.9%	4.85%
ILLEGAL ENTRY	16,004	9.5%	3.10%
TRAFFIC OFFENSE	14,799	8.8%	2.87%
ASSAULT	10,922	6.5%	2.12%
ILLEGAL RE-ENTRY	8,550	5.1%	1.66%
LARCENY	4,808	2.9%	0.93%
DRUG TRAFFICKING	3,760	2.2%	0.73%
DANGEROUS DRUGS	3,628	2.2%	0.70%
BURGLARY	3,320	2.0%	0.64%
DOMESTIC VIOLENCE	3,156	1.9%	0.61%

Trends Over Time

If enforcement activity were narrowing toward more serious cases, the share of detainees with convictions would be expected to rise over the course of the administration. The data shows the opposite. In the administration's first partial month, roughly half of those booked into detention had no conviction; by mid-2026, that share had risen to nearly three-quarters, while the share with violent convictions fell from 4.3 percent to 1.7 percent over the same period. This pattern is consistent with an enforcement approach driven by aggregate arrest targets rather than one prioritizing the most serious cases, a dynamic also reflected in reporting on internally set arrest quotas.

Monthly ICE Book-Ins: Share by Criminality Category



Age Distribution

The FOIA data also show detention reaching both ends of the age spectrum: 2,909 children under 13 and 12,843 people aged 60 or older were booked into ICE detention during the period studied. Younger and older detainees are disproportionately unlikely to have any conviction—over 99 percent of those under 13, compared with roughly half of those in their 30s and 40s—while average length of stay rises steadily with age, from about 10 days among young children to nearly 57 days among detainees 70 and older.

AGE	STAYS	% WITH NO CONVICTION	MEAN LENGTH OF STAY (DAYS)
<5	261	100%	13.2
5 - 9	1,652	99.8%	10.3
10 - 12	996	100%	10.3
13 - 18	3,233	95.9%	25.1

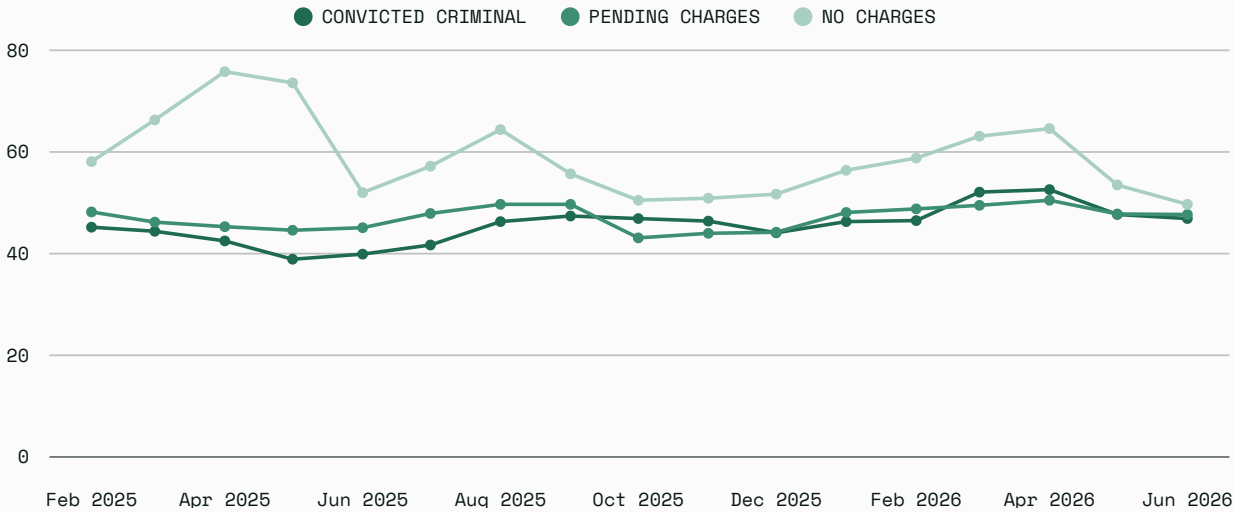
AGE	STAYS	% WITH NO CONVICTION	MEAN LENGTH OF STAY (DAYS)
18 - 29	156,911	78.8%	38
30 - 44	241,732	65.3%	39.7
45 - 59	98,081	55.3%	41.5
60 - 69	11,388	49.3%	47.4
70+	1,455	33.1%	56.9

Length of Stay and Bond

Detainees without any charge or conviction have consistently experienced longer average stays than those with pending charges or prior convictions, though the gap has narrowed considerably over the course of the administration.

Average Length of Stay, by Criminality

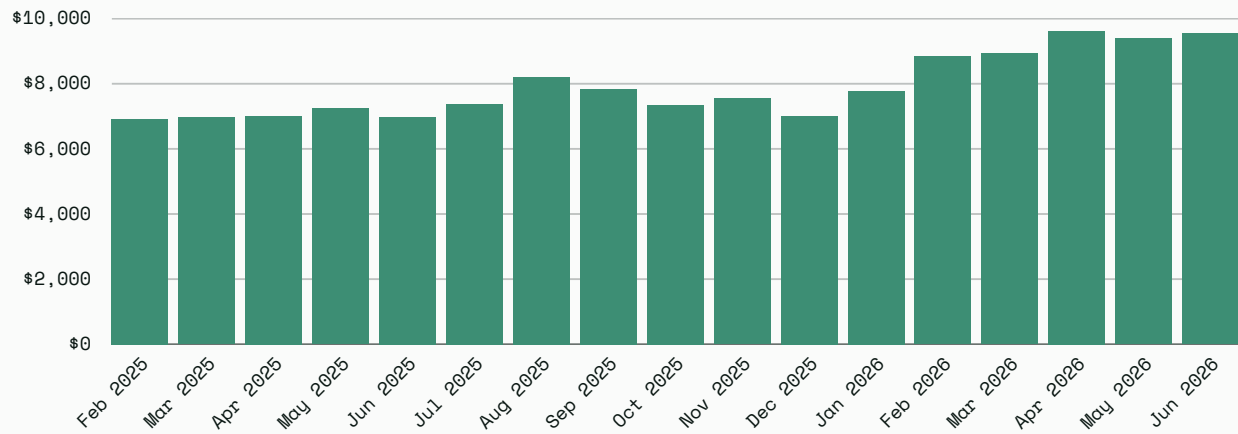
Under the second Trump administration



Bond amounts for eligible detainees have risen in parallel, from an average of \$6,910 in February 2025 to \$9,539 by June 2026.

Average Bond Amount

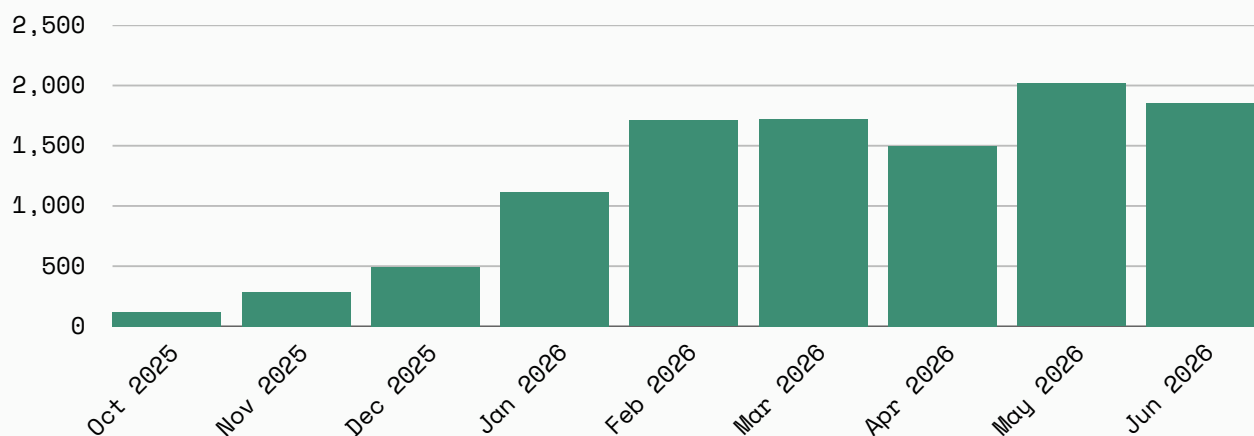
Under the second Trump administration



Court-Ordered Releases

ICE's FY2025 detention workbook contained no line item for court-ordered releases; the FY2026 workbook does. New reporting categories of this kind typically emerge not for stylistic reasons but because a number has grown too large to remain folded into "Other." The volume here is traceable to a specific policy: after the Department of Homeland Security adopted a policy of mandatory detention without bond hearings for anyone who entered without inspection, detainees increasingly sought release through federal habeas corpus petitions. As of late August 2026, eight federal appeals [courts had found the underlying policy unlawful](#). Court-ordered releases rose from roughly 130 in October 2025 to over 2,000 in May 2026.

Court-Ordered Immigration Detention Releases, by Month



Detention Capacity and Facility Oversight

Nearly two-thirds of the detained population is held in facilities operated under private contract. Sixty-seven facilities carry “guaranteed minimum” bed clauses, under which the government pays for a fixed number of beds regardless of occupancy. As of the most recent facility snapshot (July 9, 2026), only 56.4 percent of beds in these facilities were occupied, meaning 20,815 contracted beds went unused on that date alone.

Oversight has not kept pace with the buildup in capacity. Five facilities holding 433 people carry a failed final inspection rating, and forty-two facilities holding 3,669 people have no final inspection rating on record at all. The bar for a passing rating appears low in practice: Winn Correctional Center in Louisiana passed its inspection cycles despite contemporaneous reports of staff placing detainees in chokeholds, discolored water, improperly stored food, and uninhabitable sleeping conditions.

Gaps in Official Reporting

ICE's semiannual reporting recorded ten U.S. citizens arrested across FY2025 and FY2026 combined. Independent [reporting by ProPublica](#) identified more than 170 such incidents in the first nine months of the administration alone, including 20 children, two of whom had cancer at the time of their detention. ICE's fiscal-year reporting also omits in-custody deaths entirely. 2025 was [already the deadliest year](#) in the agency's history for in-custody deaths; 2026 has surpassed it. The FOIA dataset used throughout this report separately documents 47 in-custody deaths during the second Trump administration.

Discussion

Taken together, these findings complicate the “worst of the worst” framing that has anchored public discussion of immigration enforcement since January 2025. ICE's own threat-rating system cannot classify the risk posed by nearly three-quarters of the people it detains, for the simple reason that most have no conviction to base a rating on. The share of detainees without any conviction has grown, not shrunk, since the administration began—the opposite of what a strategy narrowing toward serious offenders would produce, and consistent instead with a system oriented around volume-based arrest targets. At the same time, the enforcement apparatus remains well short of its own stated numerical goals, even as its cost, footprint, and use of civil detention authority have expanded substantially. Independent reporting suggests the government's own figures likely understate the program's reach into U.S. citizens and its human cost in custodial deaths. Further research, particularly using the FOIA dataset's granularity on individual case outcomes, could usefully assess whether these enforcement patterns are shifting as ongoing habeas litigation over mandatory detention proceeds through the federal courts.